

Amendment No. 1 to HB0602

Farmer
Signature of Sponsor

AMEND Senate Bill No. 335*

House Bill No. 602

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-605(b), is amended by adding the following as a new subdivision:

() "Disseminate" means to transfer, publish, or otherwise make accessible;

SECTION 2. Tennessee Code Annotated, Section 39-13-605, is amended by adding the following new subsection:

(g) Prosecution for a violation of this section must commence as provided in title 40, chapter 2. Pursuant to § 40-2-103, the statute of limitations is tolled for any period during which the defendant conceals the crime until such time at which the victim discovers the crime.

SECTION 3. Tennessee Code Annotated, Section 36-3-601(8), is amended by deleting the language "or a human trafficking offense" and substituting ", a human trafficking offense, observation without consent, or unlawful photography".

SECTION 4. Tennessee Code Annotated, Section 36-3-601, is amended by adding the following new subdivisions:

() "Observation without consent victim" means a person who has been the victim of the offense of observation without consent, as defined in § 39-13-607;

() "Unlawful photography victim" means a person who has been the victim of the offense of unlawful photography, as defined in § 39-13-605;

SECTION 5. Tennessee Code Annotated, Section 36-3-602, is amended by deleting subsection (a) and substituting:

(a) Any domestic abuse victim, stalking victim, sexual assault victim, observation without consent victim, or unlawful photography victim who has been subjected to, threatened with, or placed in fear of, domestic abuse, stalking, sexual exploitation of a minor, sexual assault, a human trafficking offense, observation without consent, or unlawful photography, may seek relief under this part by filing a sworn petition alleging domestic abuse, stalking, sexual exploitation of a minor, sexual assault, a human trafficking offense, observation without consent, or unlawful photography by the respondent.

SECTION 6. Tennessee Code Annotated, Section 36-3-602(c), is amended by deleting the language "or human trafficking offense" and substituting "human trafficking offense, observation without consent, or unlawful photography".

SECTION 7. Tennessee Code Annotated, Section 36-3-605(b), is amended by deleting the language "or a human trafficking offense" wherever it appears and substituting "a human trafficking offense, observation without consent, or unlawful photography".

SECTION 8. Tennessee Code Annotated, Section 36-3-606(a), is amended by deleting the language "or a human trafficking offense" wherever it appears and substituting "a human trafficking offense, observation without consent, or unlawful photography".

SECTION 9. Tennessee Code Annotated, Section 36-3-613(a), is amended by deleting the language "or a human trafficking offense" and substituting "a human trafficking offense, observation without consent, or unlawful photography".

SECTION 10. Tennessee Code Annotated, Section 36-3-617(a), is amended by deleting the language "sexual assault victim," wherever it appears and substituting "sexual assault victim, observation without consent victim, unlawful photography victim,".

SECTION 11. Tennessee Code Annotated, Section 36-3-617(a)(2)(B), is amended by deleting the language "sexual assault," and substituting "sexual assault, observation without consent, unlawful photography,".

SECTION 12. This act is known and may be cited as the "Voyeurism Victims Act."

SECTION 13. Sections 1 and 2 of this act take effect July 1, 2025, the public welfare requiring it. All other sections take effect upon becoming a law, the public welfare requiring it.